

The Debts Recovery Tribunal (Procedure For Appointment As Presiding Officer Of The Tribunal) Rules, 1998.

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The Debts Recovery Tribunal (Procedure For Appointment As Presiding Officer Of The Tribunal) Rules, 1998.

UNION OF INDIA

India

The Debts Recovery Tribunal (Procedure For Appointment As Presiding Officer Of The Tribunal) Rules, 1998.

Rule

THE-DEBTS-RECOVERY-TRIBUNAL-PROCEDURE-FOR-APPOINTMENT-AS-PRESIDING-OFFICER-OF-THE-TRIBUNAL-RULES-1998 of 1998

Published on 19 January 1998

Commenced on 19 January 1998

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[Note: The original publication document is not available and this content could not be verified.]

The Debts Recovery Tribunal (Procedure For Appointment As Presiding Officer Of The Tribunal) Rules, 1998.

Published vide Notification G.S.R. 31(E), dated 19.1.1998, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 19.1.1998.

21.

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In exercise of the powers conferred by sub-section (1) of section 4 read with clause (e) of sub-section (2) of section 36 of the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (

51 of 1993

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement

.(1) These rules may be called The Debts Recovery Tribunal (Procedure for Appointment as Presiding Officer of the Tribunal) Rules, 1998.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (

51 of 1993

);

(b)

"Tribunal" means the Debts Recovery Tribunal established under sub-section (1) of section 3 of the Act;

(c)

"Presiding Officer" means a person appointed as Presiding Officer of a Tribunal under sub-section (1) of section 4 of the Act;

(d)

"Reserve Bank" means the Reserve Bank of India constituted under section 3 of the Reserve Bank of India Act, 1934 (

2 of 1934

);

(e)

all other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Method of appointment under sub-section (1) of section 4 of the Act

.--(1) For the purpose of appointment to the post of a Presiding Officer, there shall be a Selection Committee consisting of-

(i)

The Chief Justice of India or a Judge of the Supreme Court of India as nominated by the Chief Justice of India;

(ii)

the Secretary to the Government of India in the Ministry of Finance (Department of Economic Affairs);

(iii)

the Secretary to the Government of India in the Ministry of Law and Justice;

(iv)

the Governor of the Reserve Bank or the Deputy Governor of the Reserve Bank nominated by the Governor of the Reserve Bank;

(v)

[Secretary or Additional Secretary to the Government of India in the Ministry of Finance, Department of Financial Services.]

[Substituted by G.S.R. 3(E), dated 4-1-2011, (w.e.f. 5-1-2011).]

(2)

The Chief Justice of India or the Judge of the Supreme Court shall be the Chairman of the Selection Committee.

(3)

Any three members of the Committee including the Chairman shall form a quorum for meeting of the Committee.

(4)

[The Selection Committee may devise its own procedure for including conducting interview for selection and appointment of Presiding Officer.

(5)

The Selection Committee shall recommend persons for appointment as Presiding Officer,-

(i)

from amongst the persons from the list of candidates prepared by the Ministry of Finance after inviting necessary applications; and

(ii)

from amongst judicial officers nominated by a High Court.]

(6)

The Central Government shall on the basis of the recommendations of the Selection Committee make a list of persons selected for appointment as Presiding Officer and the said list shall be valid for a period of two years. The appointment of a Presiding Officer shall be made from the list so prepared.

4.

Medical fitness

.-No person shall be appointed as a Presiding Officer unless he is declared medically fit by a Medical Board to be constituted by the Central Government for the purpose unless he has already been declared fit by an equivalent authority.

5.

Interpretation

.-If any question arises relating to the interpretation of these rules the same shall be referred to the Central Government for its decision.

6.

Saving

.-Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, Scheduled Tribes, Other Backward Classes, ex-servicemen and other special categories of persons, in accordance with the orders issued by the Central Government from time to time in this regard.

7.

Oaths of office and secrecy

.-Every person appointed to be Presiding Officer under sub-section (1) of section 4 shall, before entering upon his office, make and subscribe an oath of office and secrecy in the Forms annexed to these rules.

FORM I

(See rule 7)

Form of oath of office for presiding officer of the debts recovery tribunal

"I (Name of the Presiding Officer) having been appointed as Presiding Officer do solemnly affirm/do swear in the name of God that I will faithfully and conscientiously discharge my duties as Presiding Officer to the best of my ability, knowledge and judgment, without fear or favour, affection or ill will.

Name of the presiding officer

Debts recovery tribunal

FORM II

(See rule 7)

Form of oath of secrecy for presiding officer of the debts recovery tribunal

"I (Name of the Presiding Officer) having been appointed as Presiding Officer do solemnly affirm/do swear in the name of God that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as Presiding Officer of said Debts Recovery Tribunal except as may be required for the due discharge of my duties as the Presiding Officer."

Name of The Presiding Officer

Debts Recovery Tribunal

[Substituted by G.S.R. 646(E), dated 2-8-2000, for sub-Rules (4) and (5) (w.e.f. 2-8-2000).]

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